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Craighead County Circuit Court in Jonesboro
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16JCV-21-706
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IN THE CIRCUIT COURT OF CRAIGHEAD COUNTY, ARKANSAS
WESTERN DISTRICT – CIVIL DIVISION

SHON CUNNINGHAM,
ROSE CUNNINGHAM and
SRC TRANSPORT, LLC

PLAINTIFFS

VS.

CASE NO.: CV-2021-_____

STEVENS TRANSPORT, INC.
and JOHN DOE NOS. 1-4

DEFENDANTS

COMPLAINT

COMES NOW Plaintiffs, Shon Cunningham, Rose Cunningham and SRC Transport, LLC, by and through their attorneys, McDaniel Law Firm, PLC, and for their Complaint against Defendants, Stevens Transport, Inc., and John Doe Nos. 1-4 state as follows:

1. That at the time of the occurrence referred to herein, Plaintiff, Shon Cunningham, was and is a resident of Jonesboro, Craighead County, Arkansas.
2. That at the time of the filing of this action, Plaintiff, Rose Cunningham, was and is now the wife of Shon Cunningham, and was and is now a resident of Jonesboro, Craighead County, Arkansas.
3. That SRC Transport, LCC, at the time of the occurrence referred to herein, was and is an Arkansas corporation, in good standing, with its principal place of business in Jonesboro, Arkansas.

4. That at the time of the occurrence referred to herein, Plaintiff Shon Cunningham, was occupying a tractor trailer owned by SRC Transport, LLC.

5. That at all times pertinent hereto, Defendant Stevens Transport, LLC (hereinafter referred to as "Stevens Transport") is/was a foreign for-profit corporation doing business in the State of Arkansas.

6. That Defendant Stevens Transport's headquarters and principal place of business is located in Dallas, Texas.

7. That in addition and/or in the alternative to the above, Defendant John Doe Nos. 1-4, is the official name of any person or entity with which Defendant Stevens Transport and/or Thomas McGrady may be associated (including other principal(s), employer(s), or successor(s)-in-interest). Further, Defendant John Doe Nos. 3-4 represent any shipper, broker, supplier, and/or, as applicable, recipient(s) of the loads being hauled by Mr. Thomas McGrady at the time of the subject occurrence.

8. That upon determining the identity of any current unknown tortfeasor, person or entity, Plaintiffs will amend the Complaint by substituting the real name for the pseudo-name.

9. That pursuant to A.C.A. §16-56-125, Plaintiffs have attached the Affidavit of Plaintiffs' Attorneys affirming the identity of a tortfeasor(s) is unknown, as "**Exhibit A.**"

10. That this Court has jurisdiction over this cause and the parties hereto and the venue of this action is properly placed with this Court.

11. That at the time of the occurrence referred to herein, Mr. Thomas McGrady (hereinafter "Mr. McGrady") was driving a tractor-trailer owned, leased, maintained, and/or operated by or on behalf of Defendant Stevens Transport.

12. That at the time of the occurrence, Mr. McGrady was the agent, servant and/or employee of Defendant Stevens Transport.

13. That the tractor trailer operated by Mr. McGrady involved in this collision was operated under U.S. Department of Transportation ("DOT") #79466.

14. That DOT #79466 is a permit to engage in interstate commercial transport by Defendant Stevens Transport.

15. That on the date of the subject occurrence, March 6, 2021, Mr. McGrady had a Commercial Driver's License ("CDL").

16. That at all times pertinent hereto, Mr. McGrady was a commercial motor vehicle driver subject to the regulations of the United State Department of Transportation (FMCSA) and the State of Arkansas.

17. That at all times pertinent hereto, Mr. McGrady was in the course and scope of his employment and/or agency relationship with Defendant Stevens Transport.

18. That on March 3, 2021, preceding the subject collision, Plaintiff Shon Cunningham parked his tractor trailer at the Road Runner Truck Stop in Texarkana, Arkansas.

19. That the Cunningham vehicle was a 1999 Mack tractor and Great Dane trailer. Plaintiff was lying down in the sleeper of the cab at the time of the collision.

20. That at approximately 1:10 a.m., Mr. McGrady was attempting to back his tractor trailer into an empty parking space at the Road Runner Truck Stop, next to Plaintiff Shon Cunningham's parked tractor trailer, and backed his trailer into the right front of Plaintiff's tractor.

21. That the subject collision and all damages related thereto occurred as a proximate result of the negligent conduct of Mr. McGrady, which is imputed to Defendant Stevens Transport, in particulars including, but not limited to, the following:

- a. That Mr. McGrady failed to yield the right of way;
- b. That Mr. McGrady failed to maintain a proper lookout under the circumstances then and there existing;
- c. That Mr. McGrady failed to maintain proper control of his vehicle for the circumstances then and there existing;
- d. That Mr. McGrady failed to comply with all rules, regulations, and duties required by the laws of the State of Arkansas and/or by DOT regulations; and,
- e. That Mr. McGrady failed to use ordinary care under the circumstances then and there existing.

22. That Defendant Stevens Transport was negligent in particulars including, but not limited to, the following:

- a. Negligence in the hiring, training, and supervision of Mr. McGrady;
- b. Negligent failure to comply with all rules, regulations, and duties required by the laws of the State of Arkansas and by DOT regulations; and,
- c. Otherwise failing to exercise ordinary care under the circumstances.

23. That Plaintiff Shon Cunningham was not guilty of any comparative fault.

24. That no other person, firm, company, corporation, or entity of any type, other than those identified herein, was guilty of any negligence which was a proximate and contributing cause of the subject collision and/or Plaintiffs' damages.

25. That the negligence of Mr. McGrady is imputed to Defendant Stevens Transport (an/or John Doe Nos. 1-4) under the doctrine of respondeat superior, vicarious liability, and/or by federal regulations in that he was the driver for Defendant Stevens Transport (and/or John Doe Nos. 1-4) and in the course of scope of his employment or agency relationship with Defendant Stevens Transport.

26. That as a proximate result of the negligence of Mr. McGrady, which is imputed to Defendant Stevens Transport, and the negligence of Defendant Stevens Transport (and/or John Doe Nos. 1-4), Plaintiff, Shon Cunningham, sustained injuries to areas of his body including, but not limited to, his head, neck, back and arm, which required him to incur expenses for medical care and treatment in the past and he will incur medical care and expenses in the future; he has suffered lost earnings and earnings capacity in the past and will continue to suffer lost earnings and/or earnings capacity in the future; he has endured pain, suffering, discomfort, mental anguish and loss of enjoyment of life in the past and will endure pain, suffering, discomfort, mental anguish and loss of enjoyment of life in the future; his injuries are permanent in nature; and for all of which he should have judgment from and against Defendant Stevens Transport (and/or John Doe Nos. 1-4) in an amount in excess of the minimum amount required for federal court diversity jurisdiction.

27. That as a proximate result of the negligence of Mr. McGrady, which is imputed to Defendant Stevens Transport, and the negligence of Defendant Stevens Transport (and/or John Doe Nos. 1-4), Plaintiff, Rose Cunningham, spouse of Shon Cunningham, has lost society, services, and companionship of her husband, Shon Cunningham, and should be compensated against all Defendants in an amount to be set by a jury in an amount less than \$75,000.

28. That SRC Transport, LLC, was the owner of the tractor occupied by Plaintiff Shon Cunningham at the time of the occurrence, and has incurred property damage to its tractor, and has lost earnings and earnings capacity in the past as a proximate result of the negligence of Mr. McGrady, which is imputed to Stevens Transport, Inc., and the negligence of Stevens Transport.

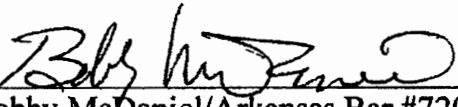
29. That Plaintiffs pray for a jury trial in this cause.

30. That Plaintiffs reserve the right to amend and plead further in this action.

WHEREFORE, Plaintiff, Shon Cunningham, prays that he have judgment from and against Defendant, Stevens Transport, in an amount in excess of that required for the minimum amount necessary for federal court diversity jurisdiction for compensatory damages; that Plaintiff, Rose Cunningham, be compensated in an amount less than \$75,000 to be set by the jury; that Plaintiff, SRC Transport, LLC, be compensated in an amount less than \$75,000 to be set by the jury; and, for their costs, and all other relief to which they may be entitled.

Respectfully submitted,

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By: 
Bobby McDaniel/Arkansas Bar #72083

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WESTERN DISTRICT – CIVIL DIVISION

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PLAINTIFFS

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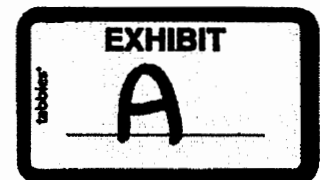
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AFFIDAVIT

I, Bobby McDaniel, attorney for Shon Cunningham, Rose Cunningham, and SRC Transport, LLC, pursuant to Ark. Code Ann c 16-56-125, state that the correct name and identity of the tortfeasor person(s), corporation(s) and entity(ies) are unknown. All due diligent efforts have been made to properly identify the name and identity of the unknown tortfeasor person(s), corporation(s) and entity(ies). If the name and identity of the unknown tortfeasor person(s), corporation(s) and entity(ies) is not one of the specifically named defendants as contained in this complaint, the use of the pseudo-name John and/or Jane Doe as the defendant is appropriate for the purpose of tolling the statute of limitations for these plaintiffs against these unknown defendants. Furthermore, if there is more than one (1) such unknown tortfeasor, the use of John and/or Jane Doe 1, John and/or Jane Doe 2, John and/or Jane Doe 3, etc. is also appropriate as set out in the complaint.

McDANIEL
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DATED this 2 day of July, 2021.

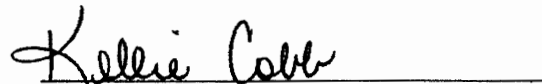


Bobby McDaniel
Arkansas Bar #72083

State of Arkansas

County of Craighead

Subscribed and sworn to before me on this 2 day of July, 2021.


Notary Public

9-27-29

My Commission Expires

Kellie Cobb
Notary Public
Craighead County, Arkansas
My Comm. Expires Sept. 27, 2029
Commission #12708866